

Event Photography Contract

This Event Photography Contract constitutes a binding agreement by and the Photographer and the Client signing up via any order form, purchase order or other similar document mutually agreed by the parties (e.g., when signed if a separate physical document, or when entered into online) (collectively, each, an "Order Form"). This contract includes custom terms or price lists from the Photographer identified herein or attached at this time, and together, all of this forms the "Agreement" between the parties.

ENTIRE AGREEMENT: This Agreement supersedes all prior and simultaneous discussions and agreements between the parties. The only way to add or change this Agreement is to do so in writing, signed by all parties. If the parties want to waive one provision of this agreement that does not mean that any other provision is also waived. The party against whom a waiver is sought to be effective must have signed a waiver in writing.

COOPERATION: The parties agree to polite cooperation and communication for the best possible result. Photographer recommends that the Client prepare notes for Photographer to discuss in advance to point out important people or activities Client wants captured by Photographer during the event. The photographer will not be held accountable for not photographing desired people or activities if there is no one to assist in identifying and/or gathering people for photographs, or if Client or other Photo subjects are late or uncooperative. Photographer is not responsible if key individuals fail to appear or cooperate during photography sessions or for missed images due to details not revealed to the Photographer. Client shall ensure a safe working environment and safe location to store Photographer's equipment while on site. The parties will comply with typical norms and procedures.

ROLE OF GOPHOTOS: GoPhotos, Inc. is NOT your Photographer, but rather, is merely a search and directory platform that helps Clients find Photographers and hire them. GoPhotos is not providing the Photography Services and is not responsible is anything goes wrong with your event, images, no-shows, tardiness, payment issues, nor for any disputes between Client and Photographer, nor for any acts or omissions of Client or Photographer. GoPhotos may elect to help sort our disputes, and may facilitate transactions, but that does not make GoPhotos responsible for anything. This contract is essentially between Client and Photographer, although both Client and Photographer hereby agree to release GoPhotos from any liability hereunder.

OTHER: In the unlikely event that photographs have been lost, stolen or destroyed for reasons within or beyond Photographer control, Photographer's liability is limited to the return of all payments received for the event package stated in this contract. The limit of liability for a partial loss of originals shall be prorated amount of the exposures lost based on the percentage of the total number of originals. Client is responsible for securing rights to use, and/or reserving, any space or venue where photos will be taken. Client will indemnify Photographer for any harm caused to Photographer related persons or property caused in whole or in part by Client or Client's related parties, guests or agents. Photographer is not liable for anything outside Photographer's control. Photographer's maximum liability for any reason is limited to refund of amounts paid by Client. Client will not disparage Photographer or their work. This contract is governed by the US State laws in the state where Photographer is located. The parties will use reasonable efforts to amicably resolve disputes, and will try to use amicable dispute resolution solutions, but where necessary, Client agrees to exclusive jurisdiction in courts in the state of Photographer's location. Photographer may take reasonable breaks, and Client shall provide meal(s) at longer events. If Photographer is asked to work extra hours above contracted amounts, it is up to Photographer's discretion to do so and may lead to extra charges.

CANCELLATION: Unless otherwise stated above or on the Order Form, the following cancellation terms apply: In the event of cancellation for no good reason, by Client, any deposits paid are refundable up until the non-refundable date on the Order Form; if the Order Form does not have a non-refundable date, then that date is [1 week] before the event. In the event that Photographer is unable to fulfill this contract through no fault of Client, and cancels before performing any services, a full refund of all deposits will be due paid to CLIENT. If the event is postponed for any reason outside the parties' control, such as due to weather or cancellation by the venue, Photographer agree to give credit under this contract for future services to be performed at a new replacement event date. No refunds for any cancellation for any reason within 5 days of the event.

COMPLETION SCHEDULE: Unless otherwise stated above or on the Order Form, the following delivery schedule terms apply: Images will be delivered in accordance with Photographer's standard timelines and process for other similar clients, including, if applicable, any timelines for editing and/or retouching of images, after the event date. If editing or retouching is a part of the services, Client will be reasonable in the number and extent of requests for changes. All options for individual pictures, albums, digital files, etc., will be as mutually agreed and in accordance with Photographer's standard practices.

MODEL RELEASE: Unless otherwise stated above or in the Order Form, the Client hereby grants to Photographer the right to use and publish and Photographs of Client and/or Event, for promotional purposes to advertise Photographer's work, to enter photography contests, and similar uses, including the irrevocable and unrestricted right to editorial, trade, advertising and any other purpose and in manner and medium; to alter the same without restriction; and to copyright the same. The CLIENT hereby releases Photographer and it's legal representatives and assigns from all claims and liability relating to said photographs.

IMAGE RIGHTS: Unless otherwise stated above or on the Order Form, Photographer retains all rights in and to the images, but gives a non-exclusive perpetual license to the Client (and Client alone) to privately use the images, share with family or friends for their private use, or to publish on Client controlled websites or social accounts.